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In the
Supreme Court of the United States
October Term, 1994

**NATIONAL PRIVATE TRUCK COUNCIL, INC.,
WESTINGHOUSE ELECTRIC CORPORATION, AND
ROY E. GRIFFIS,**

Petitioners,

v.

OKLAHOMA TAX COMMISSION, ET AL.,

Respondents.

**ON WRIT OF CERTIORARI
TO THE SUPREME COURT OF OKLAHOMA**

BRIEF OF RESPONDENTS

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QUESTION PRESENTED

Where a “plain, speedy and efficient remedy” is available under state law for Commerce Clause or other Constitutional or federal law challenges to state tax laws, are the state courts, in view of the principles of federalism and comity, *required* by federal law to entertain a coextensive claim under 42 U.S.C. §§ 1983, asserted solely for the purpose of claiming attorney fees pursuant to § 1988?



TABLE OF CONTENTS

	PAGE
QUESTION PRESENTED	i
ADDITIONAL STATUTORY PROVISIONS	1
STATEMENT OF THE CASE	2
SUMMARY OF THE ARGUMENT	5
ARGUMENT	6
I. IN STATE TAX CHALLENGES, STATE COURTS ARE NOT REQUIRED TO IMPOSE FEDERAL REMEDIES PURSUANT TO 42 U.S.C. §§ 1983 AND 1988 WHEN A "PLAIN, SPEEDY AND EFFICIENT" REMEDY MAY BE HAD UNDER STATE LAW.	6
A. Congress Has Drastically Limited Federal Interference In The Administration of State Taxation When A "Plain, Speedy And Efficient" State Remedy Is Avail- able.	8
B. Oklahoma Provides A "Plain, Speedy And Efficient Remedy."	12
II. NEITHER THE SUPREMACY CLAUSE NOR THIS COURT'S DECISIONS REQUIRE THE STATE TO GRANT ADDITIONAL REMEDIES UNDER § 1988 IN STATE TAX CHALLENGES..	16
CONCLUSION	18
APPENDIX	1a

TABLE OF AUTHORITIES

CASES	PAGE
<i>Boise Artesian Water Co. v. Boise City</i> , 213 U.S. 276 (1909)	10
<i>California v. Grace Brethren Church</i> , 457 U.S. 393 (1982)	11,17
<i>Chapman v. Houston Welfare Rights Organization</i> , 441 U.S. 600 (1979)	14
<i>Cities Service Gas Co. v. Oklahoma Tax Comm'n</i> , 656 F.2d 584 (10th Cir.), cert. denied, 454 U.S. 1124 (1981)	13
<i>Dennis v. Higgins</i> , 498 U.S. 439 (1991)	3
<i>Dows v. City of Chicago</i> , 78 U.S. (11 Wall.) 108 (1871)	9
<i>Ex Parte Young</i> , 209 U.S. 123 (1908)	16
<i>Fair Assessment in Real Estate Ass'n v. McNary</i> , 454 U.S. 100 (1981)	passim
<i>Great Lakes Dredge & Dock Co. v. Huffman</i> , 319 U.S. 293 (1943)	10
<i>Hudson v. Palmer</i> , 468 U.S. 517 (1984)	14
<i>Kentucky v. Graham</i> , 473 U.S. 159 (1985)	16,18
<i>Lynch v. Household Finance Corp.</i> , 405 U.S. 538 (1972)	9
<i>Matthews v. Rodgers</i> , 284 U.S. 521 (1932)	10

TABLE OF AUTHORITIES (cont'd)

	PAGE
CASES (CONT'D)	
<i>McKesson Corp. v. Division of Alcoholic Beverages and Tobacco</i> , 496 U.S. 18 (1990)	13
<i>Monroe v. Pape</i> , 365 U.S. 167 (1961)	8,9
<i>Oklahoma Tax Commission v. Harris</i> , 126 P.2d 685 (Okla. 1942)	6,7,17
<i>Oklahoma Tax Commission v. Smith</i> , 610 P.2d 794 (Okla. 1980)	12
<i>Parratt v. Taylor</i> , 451 U.S. 527 (1981)	14
<i>Perez v. Ledesma</i> , 401 U.S. 82 (1971)	11
<i>Private Truck Council of America, Inc. v. Oklahoma Tax Comm'n</i> , 806 P.2d 598 (1991) ...	6
<i>Private Truck Council of America, Inc. v. Oklahoma Tax Comm'n</i> , 879 P.2d 137	12,13
<i>Rosewell v. LaSalle National Bank</i> , 450 U.S. 503 (1981)	11,14,15
<i>Singer Sewing Machine Co. v. Benedict</i> , 229 U.S. 481 (1913)	10
<i>Tully v. Griffin, Inc.</i> , 429 U.S. 68 (1976)	10
<i>Will v. Michigan Dep't of State Police</i> , 491 U.S. 58 (1989)	16,17

TABLE OF AUTHORITIES (cont'd)

	PAGE
CONSTITUTION AND STATUTES	
U.S. Const. art. I, § 8, cl. 3	2
U.S. Const. art. VI, cl. 2	8
28 U.S.C. § 1341	<i>passim</i>
42 U.S.C. § 1983	<i>passim</i>
42 U.S.C. § 1988	<i>passim</i>
OKLA. STAT. tit. 12, §§ 1651 <i>et seq.</i> (1981)	2
OKLA. STAT. tit. 68, §§ 201 <i>et seq.</i> (1981)	12
OKLA. STAT. tit. 68, § 221	12
OKLA. STAT. tit. 68, § 225	13
OKLA. STAT. tit. 68, § 226 (1981)	<i>passim</i>
OTHER	
Robert L. Stern, et al., <i>Supreme Court Practice</i> 250 (7th ed. 1993)	4

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BRIEF OF RESPONDENTS

ADDITIONAL STATUTORY PROVISIONS

In addition to the Constitutional and statutory provisions cited by Petitioners, the following state statute is involved:

OKLA. STAT. tit. 68, § 226 (1981), which creates a right of action to afford a remedy to any taxpayer who wishes to challenge any state tax or its collection or enforcement, where the taxes complained of are claimed to be an unlawful burden on interstate commerce, or the collection thereof violative of any Congressional Act or provision of

the Federal Constitution, is set out in full in the Appendix to this Brief, at 1a.

STATEMENT OF THE CASE

Petitioners (plaintiffs below) initially brought this action in state district court pursuant to OKLA. STAT. tit. 68, § 226 (1981) to recover taxes paid under protest, which taxes plaintiffs charged were violative of the Commerce Clause.¹ The plaintiffs' Petition invoked the state court's jurisdiction pursuant to § 226 and OKLA. STAT. tit. 12, §§ 1651 *et seq.* (1981) (Declaratory Judgments Act). J.A. 20. In Count III of their state court petition, plaintiffs alleged that the actions of the defendants² in collecting the taxes imposed by the challenged statutes were "taken under color of state law," and that defendants, Respondents here, were therefore "liable to plaintiffs pursuant to 42 U.S.C. § 1983."³ J.A. 25. In their prayer for relief, plaintiffs sought attorney fees under state law and 42 U.S.C. § 1988. J.A. 26.

Defendants argued in favor of the statutes' constitutionality, and also challenged the plaintiffs' claim for

¹ U.S. Const. art. I, § 8, cl. 3.

² The original defendants were the State of Oklahoma, the Oklahoma Tax Commission, the Commissioners of the Tax Commission, both individually and in their official capacities, and the State Treasurer. The action was later dismissed as to the State, the State Treasurer, and the Tax Commissioners as individuals.

³ No specific damages or relief were sought under § 1983 in the petition, either in the form of declaratory or injunctive relief, or as refunds. Those remedies were available, and invoked, under state law, *ie.*, 68 O.S. § 226.

attorney fees in a two-fold argument: (1) that a § 1983 claim could not be brought on Commerce Clause grounds; and (2) that a § 1983 claim is not cognizable in state court where a complete and adequate remedy (such as 68 O.S. 1981, § 226) is provided under state law to redress the plaintiffs' substantive claim.

The trial court upheld the tax statutes' constitutionality under the Commerce Clause, and also dismissed plaintiffs' § 1983 claim. That dismissal was based upon the court's conclusion that the Commerce Clause would not support a claim under § 1983.

On appeal, the Oklahoma Supreme Court reversed the trial court as to the constitutionality of the taxing statutes, holding them violative of the Commerce Clause, and ordered partial refunds.⁴ That court agreed, however, that plaintiffs were not entitled to attorney fees, also upon the grounds that, under then extant jurisprudence, a § 1983 claim could not be maintained on Commerce Clause grounds. As with the trial court, although the existence and adequacy of the state-law remedy as grounds for dismissal of a § 1983 claim had been briefed and argued by the Oklahoma Attorney General and by the Tax Commission,⁵ that issue was not addressed in the Oklahoma court's opinion.

Subsequent to the Oklahoma Supreme Court's decision on June 28, 1990, this Court ruled in *Dennis v. Higgins*, 498 U.S. 439, 111 S.Ct. 865 (1991), that suits for violations of the Commerce Clause may be brought under § 1983. As a result, on plaintiffs' petition for certiorari, the Court

⁴ 806 P.2d 598 (Okla. 1990).

⁵ See, eg., J.A. at 57-60.

vacated the Oklahoma Supreme Court's opinion and remanded for further consideration in light of *Dennis*.⁶

On remand, the Oklahoma court recognized this Court's holding in *Dennis*, and acknowledged that, pursuant thereto, Commerce Clause violations do indeed provide a basis for the bringing of a § 1983 action. 879 P.2d at 138, 140, Pet.App. 1a, 5a. The court, however, went on to examine the pertinent issue of this case, which was not involved in *Dennis*: Are the state courts *required* to entertain such actions where, as here, a "plain, speedy and efficient remedy" is available—and invoked—under state law?

The Oklahoma court first found that Oklahoma law provides an adequate state remedy affording the relief the plaintiffs requested. 879 P.2d at 138, 139, Pet.App. 1a, 4a. Consequently, under the provisions of the Tax Injunction Act, 28 U.S.C. § 1341, a federal court would be prohibited from entertaining Petitioner-plaintiffs' claim. *Id.*, at 138, Pet.App. 2a-3a. Thus that court, while acknowledging that state courts have *jurisdiction* to consider § 1983 claims, found that the determinative issue in this case was whether, under principles of federalism and comity, the state courts were required to *exercise* that jurisdiction when tax challengers could receive constitutionally adequate relief under state law. *Id.*, at 140-142, Pet.App. 6a-11a. After reviewing the decisions and rationale both of this Court and of those state court decisions which

⁶ In issuing such a summary reconsideration order, this Court told the Oklahoma court to reconsider the case "in light of the intervening precedent—which may or may not compel a different result." Robert L. Stern, et al., *Supreme Court Practice* 250 (7th ed. 1993).

considered *that* question—and those which did not—the court held that, under those principles, the exercise of such jurisdiction was not required under these circumstances. *Ibid.*

Accordingly, the court below found that plaintiff-petitioners had been afforded a plain, speedy and efficient remedy under state law which was adequate for 14th Amendment due process purposes, and that this Court's decision in *Dennis v. Higgins*, under these circumstances, did not compel a different result in this case. As the court said, "[a]lthough the reasons for so doing have changed," the trial court (and the Oklahoma Supreme Court) "reached the right result in declining to grant an attorneys' fee under §§ 1983 and 1988." *Id.*, at 142, Pet.App. 10a-11a. The prior judgment was reinstated. *Ibid.*

As will be shown, that decision is consistent with applicable decisions of this Court, the Constitution, and the mandates of Congress regarding the enforcement of state tax laws. The decision below should be affirmed.

SUMMARY OF THE ARGUMENT

No action, claim or remedy is or was necessary under 42 U.S.C. § 1983 to vindicate Petitioners' rights under the Commerce Clause in this case, or to award them the tax refunds they sought. All of their remedies, which were adequate and complete, were and are provided by state law. In such a case, Congress' intent and policy, as manifested by 28 U.S.C. § 1341, is one of nonintrusion and noninterference. Petitioners' argument, therefore, that the state court's refusal to grant additional remedies under federal law is in conflict with the policies and purposes of the federal statutes, is simply untenable. The Court's decisions have well established that where state laws

provide taxpayers a complete and adequate remedy, one that is "plain, speedy and efficient," the intent and policy of Congress is that those taxpayers should be remitted solely to those state remedies. That is what was done in this case. The decision below is not in conflict with federal policy; rather, it preserves and follows it. The decision should be affirmed.

ARGUMENT

I

IN STATE TAX CHALLENGES, STATE COURTS ARE NOT REQUIRED TO IMPOSE FEDERAL REMEDIES PURSUANT TO 42 U.S.C. §§ 1983 AND 1988 WHEN A "PLAIN, SPEEDY AND EFFICIENT" REMEDY MAY BE HAD UNDER STATE LAW.

The State of Oklahoma, though the provisions of OKLA. STAT. tit. 68, § 226 (1981), provides an "all-in-one" legal remedy to taxpayers who contend that a state tax or its enforcement constitutes an unlawful burden on interstate commerce, or otherwise violates any of the Acts of Congress or the United States Constitution. *Private Truck Council of America, Inc. v. Oklahoma Tax Comm'n*, 806 P.2d 598, 606-607 (1991). This section, which provides a specific right of action and remedy for state tax challenges, authorizes taxpayers to pay the complained-of taxes under protest and to file suit for their recovery where, if successful, the taxpayer may obtain a declaration of the tax statute's constitutional invalidity,⁷ preclude future collec-

⁷ The statute itself does not provide for either declaratory or injunctive relief. App. 1a. And the Oklahoma court has held that a taxpayer may not maintain an action solely to enjoin the collection of a tax. *Oklahoma Tax Commission v. Harris*, 126 (continued...)

tion of those taxes, and obtain a refund of the protested taxes paid, with interest. *Id.*

In this case, Petitioners brought just such an action in state court under § 226 to challenge certain state taxes imposed on motor carriers. The state statute, however, does not authorize attorneys' fees. Therefore, although Petitioners could obtain full redress for their complaints under state law, they appended to their state court petition a claim that the imposition of the tax "deprived" them of rights secured by the Constitution, and that the Respondents were therefore "liable" pursuant to 42 U.S.C. § 1983. Accordingly, although there was no relief or "liability" to be granted under § 1983—a complete remedy being provided by the state statute—Petitioners asked for attorneys' fees pursuant to 42 U.S.C. § 1988.

Petitioners' basic argument in support of their quest for attorneys' fees is that Congress, in enacting 42 U.S.C. §§ 1983 and 1988, has mandated that all remedies available under those federal laws must also be made available in state court actions challenging state taxes, even when the state-law remedy is "plain, speedy and efficient." As will be seen, however, there is no such mandate, and Respondents submit that Congress never intended such a result.

⁷(...continued)

P.2d 685 (Okla. 1942). However, in order to find the taxpayer entitled to a refund under 68 O.S. § 226, the court must necessarily declare that the offending tax is unconstitutional or violative of federal law. See *Fair Assessment in Real Estate Ass'n v. McNary*, 454 U.S. 100, 115 (1981).

A. *Congress Has Drastically Limited Federal Interference In The Administration of State Taxation When A "Plain, Speedy And Efficient" State Remedy Is Available.*

The basis of Petitioners' argument is that 42 U.S.C. § 1983, being an Act of Congress, is a part of the Supreme Law of the Land,⁸ and that the state courts are therefore obligated to provide all remedies that might be available in an action brought thereunder, regardless of the remedies that are available under state law. This argument, however, is nothing more than an attempt to rely upon and to reinstate, in state tax challenges, the following language from *Monroe v. Pape*, 365 U.S. 167, 183 (1961):

It is no answer that the State has a law which if enforced would give relief. The federal remedy is supplementary to the state remedy, and the latter need not be first sought and refused before the federal one is involved.⁹

However, the doctrine originating in *Monroe v. Pape* is unavailing to Petitioners here, for two reasons: first, it is taken out of context; and second, it has long been repudiated by the Court where state tax challenges are concerned.

In *Monroe v. Pape* the Court pointed out that Section 1 of the Ku Klux Act of 1871, 17 Stat. 13, from whence comes § 1983, had three main aims: (1) it might, of course, override certain state laws; (2) it provided a remedy where state law was inadequate; and (3) it was to provide a federal remedy where the state remedy, though adequate in theory, was not available in practice. *Monroe*, 365 U.S. at 173-174. Thus, recognized the Court:

⁸ U.S. Const. art. VI, cl. 2.

⁹ See Petitioners' Reply to Brf. in Opp., at 3.

It is abundantly clear that one reason the legislation was passed was to afford a federal right in federal courts because, by reason of prejudice, passion, neglect, intolerance or otherwise, state laws might not be enforced and the claims of citizens to the enjoyment of rights, privileges and immunities guaranteed by the Fourteenth Amendment might be denied by the state Agencies.

Id., at 180. Accordingly, it was in this light—that the evil sought to be addressed was the inadequacy of state remedies or, more often, the inability or unwillingness of state agencies and officers to enforce state laws—that the Court advanced the doctrine that comity, a respect for state laws, did not apply where § 1983 is involved.

That situation does not pertain here. Oklahoma does provide a remedy to redress challenges to its tax laws, and that remedy is enforced and effective—just as it was in this case. And in the area of state tax administration, Congress has expressed a policy of noninterference.

The Court has recognized that “Congress has treated judicial interference with the enforcement of state tax laws as a subject governed by unique considerations and has restricted federal jurisdiction accordingly” *Lynch v. Household Finance Corp.*, 405 U.S. 538, 542 n. 6 (1972). Shortly before Congress enacted § 1983 to provide a federal remedy and forum where state laws were inadequate to protect citizens’ rights under the Constitution, the Court “recognized the importance and sensitive nature of state tax systems and the need for federal-court restraint when deciding cases that affect such systems,” *Fair Assessment in Real Estate Ass’n v. McNary*, 454 U.S. 100, 102 (1981), and in *Dows v. City of Chicago*, 78 U.S. (11 Wall.) 108 (1871), the Court held that a suit in equity will

not lie in the federal courts to restrain or enjoin the collection of an unconstitutional state tax where the taxpayer had an adequate remedy at law. As Justice Field wrote for the Court:

It is upon taxation that the several States chiefly rely to obtain the means to carry on their respective governments, and it is of the utmost importance to all of them that the modes adopted to enforce the taxes levied should be interfered with as little as possible.

Id., at 110.¹⁰

As the Court observed in *Fair Assessment*, § 1983 cut a "broad swath." 454 U.S. at 103. However, "Congress also recognized that the autonomy and fiscal stability of the States survive best when state tax systems are not subject to scrutiny in federal courts." *Id.*, at 102-103. Thus, in 1937 Congress passed the Tax Injunction Act, 28 U.S.C. § 1341, which provides:

The district courts shall not enjoin, suspend or restrain the assessment, levy or collection of any tax under State law where a plain, speedy and efficient remedy may be had in the courts of such state.

This Act, which "has its roots in equity practice, in principles of federalism, and in recognition of the imperative need of a State to administer its own fiscal operations," *Tully v. Griffin, Inc.*, 429 U.S. 68, 73 (1976), was "first and foremost a vehicle to limit drastically federal

¹⁰ See also, *Great Lakes Dredge & Dock Co. v. Huffman*, 319 U.S. 293 (1943); *Matthews v. Rodgers*, 284 U.S. 521 (1932); *Singer Sewing Machine Co. v. Benedict*, 229 U.S. 481 (1913); *Boise Artesian Water Co. v. Boise City*, 213 U.S. 276 (1909).

district court jurisdiction to interfere with so important a local concern as the collection of taxes." *Rosewell v. LaSalle National Bank*, 450 U.S. 503, 522 (1981).

As the Court observed in *California v. Grace Brethren Church*, 457 U.S. 393, 409 n. 22 (1982), "the legislative history of the Tax Injunction Act demonstrates that Congress worried not so much about the form of relief available in the federal courts, as about divesting the federal courts of jurisdiction to interfere with state tax administration."¹¹ These principles and the Congressional intent and policy embodied in the Tax Injunction Act "reflect the fundamental principle of comity between federal courts and state governments that is essential to 'Our Federalism,' particularly in the area of state taxation." *Fair Assessment*, 454 U.S. at 103. Accordingly, the Court held that where the "broad swath" of § 1983 comes into contact with Congress' policy of noninterference with state tax remedies, "the principle of comity controls." *Id.*, at 105. Accordingly, the Court held:

Therefore, despite the ready access to federal courts provided by *Monroe* and its progeny, we hold that taxpayers are barred by the principle of comity from asserting § 1983 actions against the validity of state tax systems in federal courts. Such taxpayers must seek protection of their federal rights by state remedies, provided

¹¹ See also, *Perez v. Ledesma*, 401 U.S. 82, 128, n. 17 (1971) (Brennan, J., concurring in part and dissenting in part).

of course that those remedies are plain, adequate and complete¹²

Id., 454 U.S. at 116 (Emphasis added). Oklahoma's remedies for challenging its taxes meet the test established by the Court and mandated by Congress.

B. *Oklahoma Provides A "Plain, Speedy And Efficient Remedy."*

Under Oklahoma's Uniform Tax Procedure Code, OKLA. STAT. tit. 68, §§ 201 *et seq.* (1981), taxpayers have several remedies available by which to challenge the State's tax laws or their enforcement. See generally, *Private Truck Council of America, Inc. v. Oklahoma Tax Comm'n*, 879 P.2d 137, 145-146, Pet. App. at 17a-21a (Wilson, J., dissenting). In a case where a taxpayer fails to report and pay, or underreports and underpays, the Oklahoma Tax Commission may issue a proposed assessment and the taxpayer may protest the same and demand an administrative hearing before the Commission before payment of the tax.¹³ OKLA. STAT. tit. 68, § 221. If the taxpayer is aggrieved by the Commission's decision on his protest, he may pay the proposed assessment under protest (or post a

¹² As the Court noted, there is no significant difference between remedies that are "plain, adequate and complete" and those which are "plain, speedy and efficient" within the meaning of § 1341. "Both phrases refer to the obvious precept that plaintiffs seeking protection of federal rights in federal courts *should be remitted to their state remedies* if their federal rights will not thereby be lost." *Fair Assessment*, 454 U.S. at 116, n. 8 (emphasis added).

¹³ If the tax has not yet become due, an Oklahoma taxpayer may maintain a declaratory judgment action to challenge the validity of a tax statute on its face. *Oklahoma Tax Commission v. Smith*, 610 P.2d 794 (Okla. 1980).

bond), and appeal the Commission's order directly to the Oklahoma Supreme Court. OKLA. STAT. tit. 68, § 225. If the taxpayer is successful on appeal, the taxes, penalties or interest so paid shall be refunded, with interest. *Ibid.*

In addition to the right to protest taxes in administrative hearings before the Tax Commission, with the right of judicial review by the state supreme court, the taxpayer has a further remedy where the taxes are said to violate federal laws or the Constitution. In such a case, as was done here, the taxpayer may pay the taxes proposed to be assessed, under protest, and file suit in the state district court for their recovery. OKLA. STAT. tit. 68, § 226. Again, if the taxpayer prevails, by final judgment or on appeal, the amounts paid are refunded, with interest. *Ibid.*

These administrative and judicial remedies provide the taxpayer with a full hearing and the opportunity for judicial review, during which all constitutional objections can be raised, and provide taxpayers a "plain, speedy and efficient remedy" for challenging state taxes, as defined in *Rosewell Cities Service Gas Co. v. Oklahoma Tax Comm'n*, 656 F.2d 584 (10th Cir. 1981), *cert. denied*, 454 U.S. 1124. Further, the state remedies provide both predeprivation and postdeprivation remedies with "meaningful relief" as described in *McKesson Corp. v. Division of Alcoholic Beverages and Tobacco*, 496 U.S. 18 (1990). See, *Private Truck Council*, 879 P.2d at 147, Pet. App. at 21a, (Wilson, J., dissenting).

Petitioners here do not dispute that Oklahoma's remedies are plain, speedy and efficient, but only suggest that the state remedies are not "adequate" because they do not provide for attorneys' fees. This, of course, is the sole reason why Petitioners appended a § 1983 "claim" to their action under 68 O.S. 1981, § 226. The first fallacy of Petitioners' reasoning, of course, is their assumption that

they have a federal "right" to attorneys' fees. As the Court has held, § 1983 confers no rights, it only gives a remedy. *Chapman v. Houston Welfare Rights Organization*, 441 U.S. 600 (1979) ("One cannot go into court and claim a 'violation of § 1983'—for § 1983 by itself does not protect anyone against anything.").

Further, the refusal of the court below to entertain an action under § 1983 so as to impose additional relief to Petitioners in the form of attorneys' fees, does not make the state remedy "inadequate." As the Court has said:

Although the state remedies may not provide the respondent with all the relief which may have been available if he could have proceeded under § 1983, that does not mean that the state remedies are not adequate to satisfy the requirements of due process. The remedies provided could have fully compensated the respondent for the property loss he suffered, and we hold that they are sufficient to satisfy the requirements of due process.

Parratt v. Taylor, 451 U.S. 527, 544 (1981). See also, *Hudson v. Palmer*, 468 U.S. 517, 535 (1984) (That the petitioner might not be able to recover under state remedies the full amount which he might receive in a § 1983 action is not determinative of the adequacy of the state remedies.)

Finally, as the Court held in *Rosewell*, the failure of a state to pay interest on taxes refunded under state remedies does not mean that those remedies were not "plain, speedy and efficient" for purposes of the Tax Injunction Act, 28 U.S.C. § 1341. 450 U.S., at 523-524. The Court recognized that when it passed § 1341, Congress knew that many state tax systems commonly provided for payment of

taxes under protest with subsequent refund as their exclusive remedy. *Ibid.* And, the Court said:

It is only common sense to presume that Congress was also aware that some of these same States did not pay interest on their refunds to taxpayers, following the then-familiar rule that interest in refund actions was recoverable only when expressly allowed by statute. It would be wholly unreasonable, therefore, to construe a statute passed to limit federal-court interference in state tax matters to mean that Congress nevertheless wanted taxpayers from States not paying interest on refunds to have unimpaired access to the federal courts. If Congress had meant to carve out such an expansive exception, one would expect to find some mention of it. The statute's broad prophylactic language is incompatible with such an interpretation.

Ibid. (Internal citation omitted). The same is true of attorney fees: the failure of some states to provide for attorney fees as part of the state remedies for challenging state tax systems is no more determinative—or destructive—of the adequacy and completeness of those remedies than the failure to pay interest.

In sum, Congress and this Court have recognized that, “in the unique area of state taxation,” the principles of comity and federalism dictate a policy of federal noninterference in state tax matters, and Congress has expressed that policy by passing the Tax Injunction Act. The only condition for such noninterference is that the States provide complete and adequate remedies and procedures for challenging those state taxes and, as required by due process, provide “meaningful relief.” Oklahoma has done

so, and the policies and dictates of Congress have been satisfied.

II

NEITHER THE SUPREMACY CLAUSE NOR THIS COURT'S DECISIONS REQUIRE THE STATE TO GRANT ADDITIONAL REMEDIES UNDER § 1988 IN STATE TAX CHALLENGES.

Petitioners argue that it is "clear" that their request for injunctive and declaratory relief against the challenged state taxes can be maintained under § 1983, relying on the footnote in *Will v. Michigan Dep't of State Police*, 491 U.S. 58, 71, n. 10 (1989). See Pet. Brf. at 20, n. 11. Thus, say Petitioners, by appending a request for such relief to their state-provided action to recover taxes paid under protest, they became entitled to engraft upon their state remedies a "right" to attorneys' fees under § 1988. However, the availability of injunctive and declaratory relief under § 1983 is far from "clear" in this case, and Petitioners' asserted "right" to attorneys' fees by virtue of federal law is directly contrary to Congress' expressed policy regarding state tax challenges.

First, the relied-upon footnote in *Will* says only that state officials in their official capacity, when sued for injunctive relief, are "persons" under § 1983 because official-capacity actions for prospective relief are not treated as actions against the state. *Ibid.*, citing *Kentucky v. Graham*, 473 U.S. 159, 167, n. 14 (1985); and *Ex Parte Young*, 209 U.S. 123, 159-160 (1908). *Graham*, of course, relied upon *Young* for this proposition. *q.v.* And, contrary to Petitioners' assumption, whether injunctive or declaratory relief may be sought against state officials in their

official capacity in state tax matters is another question altogether.

As the Court has noted, after it was decided in *Ex Parte Young* that federal courts *may* enjoin state officers from enforcing an unconstitutional state law, Congress in 1937 enacted § 1341 and specifically prohibited such injunctive federal intrusions in state tax challenges where state law provided a plain, speedy and efficient remedy. *Fair Assessment in Real Estate Ass'n v. McNary*, 454 U.S. at 102-103. For the same reasons, declaratory judgments against the validity of state taxes are also prohibited. *California v. Grace Brethren Church*, 457 U.S. at 411. As these cases hold, injunctive and declaratory relief would not be available in federal court under § 1983 or otherwise. Nor, as independent claims for relief, would they be available in state court in this case. See, e.g., *Oklahoma Tax Comm'n v. Harris*, *supra* (taxpayer may not maintain action to enjoin collection of a tax); and *Fair Assessment*, 454 U.S. at 115 (a declaration in this case as to the state statutes' validity is merely incident to Petitioners' claim for refund.) See n. 7, *supra*, at p. 6. Petitioners' claim against the State for refunds, of course, is not cognizable under § 1983 under any circumstance. See *Will*, 491 U.S. at 68-69.

Secondly, the simple answer to Petitioners' Supremacy Clause argument is that this case does not present a situation where federal remedies have been denied because they were thought to be contrary to the policy of the State. Just the opposite: the policy of the State is to provide taxpayers a plain, speedy and efficient method for challenging its tax laws, and to provide meaningful relief from those tax laws found to be unconstitutional—in this case, refunds. That, itself, is the very essence of the federal policy as reflected in § 1341 and the decisions of this Court.

Finally, Petitioners' claim of conflict with the purpose and policy of federal statutes is based upon their assumption that they have a "right" to attorneys' fees under § 1988. However, § 1988 simply does not create a fee liability where there is no liability under § 1983. See, *e.g.*, *Kentucky v. Graham*, 473 U.S. 159, 168 (1985). It would be anomalous indeed to acknowledge Congress' intent "to limit drastically" federal-court interference with state tax systems, and at the same time urge that Congress intended to interfere with those systems directly by mandating the award of attorneys fees in state court actions regarding those systems, irrespective of state law.

CONCLUSION

The remedies here provided to Petitioners are plain, speedy and efficient. Consistent with Congress' announced policy, those state remedies are all the remedies to which Petitioners are entitled. The decision of the Oklahoma Supreme Court should be affirmed.

Respectfully submitted,

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APPENDIX

OKLA. STAT. tit. 68, § 226 (1981):

(a) In addition to the right of appeal to the Supreme Court provided for in the preceding section, a right of action is hereby created to afford a remedy to any taxpayer aggrieved by the provisions of this article or of any other state tax law, or who resists the collection of or the enforcement of the rules or regulations of the Tax Commission relating to the collection of any state tax.

(b) Within thirty (30) days from the date of mailing to the taxpayer of the order, ruling or finding of the Tax Commission, any such taxpayer shall pay the tax to the Tax Commission, and at the time of making such payment shall give notice to the Tax Commission of his intention to file suit for recovery of such tax. If the taxpayer prevails the Tax Commission shall, by cash voucher drawn by the Tax Commission upon its official depository clearing account or special refund reserve account with the State Treasurer, refund to the taxpayer the amount of tax determined not to be due pursuant to the final judgment of the court having jurisdiction, together with interest on such amount at the rate of three percent (3%) per annum from the date of payment by the taxpayer to the date of the court's final order. The refunds paid shall be payable as provided in Section 225(d).

(c) This section shall afford a legal remedy and right of action in any state or federal court having jurisdiction of the parties and the subject matter. It shall be construed to provide a legal remedy in the state or federal courts by action at law in cases where the taxes complained of are claimed to be an unlawful burden on interstate commerce, or the collection thereof violative of any Congressional Act

or provision of the Federal Constitution, or in cases where jurisdiction is vested in any of the Courts of the United States. In all actions brought hereunder service of process upon the Chairman of the Tax Commission shall be sufficient service, and the Tax Commission shall be the sole, necessary and proper party defendant in any such suit, and the State Treasurer shall not be a necessary or proper party thereto.

(d) Upon request of any taxpayer and upon proper showing that the principle of law involved in the assessment of any tax is already pending before the courts for judicial determination, the taxpayer, upon agreement to abide by the decision of the court, may pay the tax so assessed under protest, but need not file a suit.

